

ANNEX C

EPA Internal Review Correspondence and Regulatory Reliance Record
(Evidentiary Annex to the Statement of Matters of Public Interest)

Document Control — Version 1.1 (Supplementary)

C0.1

This Annex is issued as Version 1.1 and supplements Annex C previously provided to relevant authorities.

C0.2

The previously issued Annex C remains unchanged and continues to form part of the administrative and evidentiary record as originally provided.

C0.3

Version 1.1 records additional material arising from Freedom of Information processes and associated review through the Office of the Victorian Information Commissioner.

C0.4

This version does not amend, replace, or retrospectively alter the previously issued Annex C and is to be read together with it for completeness of the record.

C1. Purpose and Scope

C1.1

This Annex records EPA correspondence, environmental auditor verification statements, Freedom of Information outcomes, and related regulatory representations relevant to EPA's reliance posture concerning the Lal Lal Wind Farm.

C1.2

This Annex chronologically records:

- (a) environmental auditor verification statements and their evolution;
- (b) EPA statements concerning regulatory reliance and compliance posture;
- (c) representations concerning commencement of operation;
- (d) material relevant to background monitoring and turbine presence during monitoring;
- (e) regulatory interpretation statements concerning NZS 6808:2010 and the Environment Protection Regulations 2021;
- (f) Freedom of Information outcomes relevant to document custody and continuity; and
- (g) the sequence of regulatory engagement between EPA and the wind energy facility.

C1.3

This Annex records the disclosed regulatory and public record only. It does not determine compliance, legality, fault, or liability.

C1.4

References to Lal Lal Wind Farm in this Annex relate to the facility comprising the Elaine and

Yendon sections, as operated and represented for regulatory purposes as a single wind energy facility.

PART A — Auditor Verification Record (Regulation 131D)

(C2 – C5 retained exactly as issued)

PART A2 — Stage 2 Post-Construction Assessment (20 September 2024)

(C6 – C8 retained exactly as issued)

PART B — Noise Management Plan (NMP) Custody and Verification Chronology

(C9 – C16A retained exactly as issued)

PART C — Commencement of Operation

(C17 – C22A retained exactly as issued)

PART D — NZS 6808:2010 Clause Reliance and Regulatory Interpretation

(C23 – C26A retained exactly as issued)

PART E — EPA Compliance Position and Internal Review Record

(C27 – C31 retained exactly as issued)

PART F — FOI-100-2025 (Unaddressed Categories and Shadow Flicker)

(C32 – C33C retained exactly as issued)

PART G — Relationship to Other Annexes

(C34 retained exactly as issued)

PART H — FOI-100-2025 AND OVIC REVIEW

(DOCUMENT IDENTIFICATION AND DECISION RECORD)

C35. FOI-100-2025 — Scope and Document Classes Requested

C35.1

A Freedom of Information request (FOI-100-2025) was issued to the Environment Protection Authority Victoria seeking document classes including:

- (a) pre-construction predictive noise assessment material and associated auditor verification documentation;
- (b) pre-construction and baseline monitoring material and associated auditor verification documentation;
- (c) compliance baseline monitoring material and associated auditor verification documentation;
- (d) noise management plan material and associated auditor verification documentation;
- (e) shadow flicker assessment material; and
- (f) authorising documents and/or instruments altering or modifying the requirements of NZS 6808:2010, including background sound level monitoring requirements and notional boundary definitions.

C36. Notice of Decision (25 September 2025)

C36.1

A notice of decision dated 25 September 2025 was issued by the Environment Protection Authority Victoria.

C36.2

The notice of decision:

- (a) identified nine (9) documents within the scope of the request; and
- (b) recorded that those documents would be released subject to payment of access charges.

C36.3

The disclosed record does not identify any further or supplementary notice of decision issued in relation to the request.

C37. Determination Coverage on the Face of the Decision

C37.1

On the face of the notice of decision:

- (a) determinations are recorded in respect of certain documents identified within the scope of the request; and
- (b) determinations are not recorded in respect of all categories of documents sought within the scope of the request.

C37.2

The notice of decision does not identify, in respect of all parts of the request, whether documents were:

- (a) held;
- (b) not held; or
- (c) subject to refusal under the Act.

C38. OVIC Review — Decision Status

C38.1

The handling of FOI-100-2025 was the subject of review through the Office of the Victorian Information Commissioner.

C38.2

OVIC correspondence records that:

- (a) only one notice of decision has been issued in respect of the request;
- (b) no further or supplementary notice of decision has been issued determining remaining parts of the request;
- (c) the Environment Protection Authority Victoria stated that any deficiencies in the notice of decision were addressed through submissions made during the OVIC process; and
- (d) OVIC proceeded on the basis that no further action is required.

C38.3

On the disclosed record, the request is treated as determined following the OVIC process.

C39. OVIC Review — Document Identification Outcomes

C39.1

OVIC correspondence records that, following a “thorough and diligent search” undertaken by

the Environment Protection Authority Victoria, no documents were located in relation to specified parts of the request.

C39.2

Those parts include document classes comprising:

- (a) pre-construction predictive noise assessment material and associated auditor verification documentation;
- (b) pre-construction and baseline monitoring material and associated auditor verification documentation;
- (c) compliance baseline monitoring material and associated auditor verification documentation;
- (d) shadow flicker assessment material; and
- (e) authorising documents and/or instruments altering or modifying the requirements of NZS 6808:2010.

C39.3

On the disclosed record:

- (a) those document classes have not been identified as held by the Environment Protection Authority Victoria; and
- (b) no material has been identified evidencing their existence within the Agency's records.

C40. Record Status (FOI-100-2025)

C40.1

This Part records:

- (a) the document classes sought under FOI-100-2025;
- (b) the scope and content of the notice of decision dated 25 September 2025;
- (c) the absence of any further notice of decision determining all parts of the request; and
- (d) the document identification outcomes recorded through the OVIC process.

C40.2

This Part does not determine:

- (a) whether documents exist outside the disclosed record;
- (b) the legal effect of the notice of decision or the OVIC process; or
- (c) the regulatory significance of the document classes not identified.

PART I — OVIC DETERMINATION AND CONTINUATION OF EPA REGULATORY POSITION

C41. OVIC Determination (28 April 2026)

C41.1

By correspondence dated 28 April 2026 (ref: C/26/00319), the Office of the Victorian Information Commissioner issued a determination dismissing the complaint under section 61B(1)(b) of the Freedom of Information Act 1982 (Vic).

C41.2

The determination records that:

- (a) the Environment Protection Authority Victoria issued a notice of decision dated 25 September 2025 in response to FOI-100-2025;
- (b) documents identified in that decision were released following payment of access charges; and
- (c) following review, no further action would be taken by the Office of the Victorian Information Commissioner.

C41.3

The determination further records that:

- (a) the Environment Protection Authority Victoria undertook a “thorough and diligent search” for documents;
- (b) no documents were located in relation to specified parts of the request, including document classes recorded at C39.2; and
- (c) the Office of the Victorian Information Commissioner was satisfied that the searches conducted did not limit the discovery of documents.

C41.4

The determination records that concerns were raised regarding the adequacy of the notice of decision, including whether it:

- (a) stated whether documents exist or do not exist following reasonable searches;
- (b) set out findings on material questions of fact; and
- (c) provided reasons for determinations in respect of all parts of the request.

C41.5

The determination records that:

- (a) the notice of decision “could have provided further information” in respect of certain parts of the request; and
- (b) the matters raised were addressed through the complaint process, and no further action was warranted.

C41.6

On the disclosed record:

- (a) the notice of decision dated 25 September 2025 remains the only notice of decision issued in respect of FOI-100-2025; and
- (b) no further or supplementary notice of decision has been identified determining all parts of the request.

C41.7

This clause records the outcome of the OVIC review process and the relationship between:

- (a) the notice of decision;
- (b) document identification outcomes; and
- (c) the determination issued by the Office of the Victorian Information Commissioner.

C41.8

This clause does not determine:

- (a) the legal effect of the determination;
- (b) whether the notice of decision satisfies the requirements of section 27(1) of the Act; or

(c) the regulatory significance of the matters recorded.

C42. EPA Legal Branch Correspondence — Continuation of Regulatory Position

C42.1

By correspondence issued by EPA Legal Branch following provision of the Trustee's correspondence dated 17 March 2026, 16 April 2026 and 5 May 2026, the Environment Protection Authority Victoria recorded that:

- (a) the material previously provided by the Trustee had been considered;
- (b) the EPA maintains its position that the Lal Lal Wind Farm is currently complying with obligations arising under the Environment Protection Act 2017 (Vic) and Environment Protection Regulations 2021 (Vic); and
- (c) EPA would not be taking further regulatory action at that time.

C42.2

The correspondence further recorded that:

- (a) EPA would continue to monitor compliance with obligations arising under the Act and Regulations; and
- (b) future enquiries and pollution reports would be triaged through EPA's Contact Centre and assessed according to EPA's usual processes.

C42.3

The correspondence was issued following provision to the EPA of:

- (a) Supporting Record and Analytical Memorandum Version 1.0 and Version 1.1;
- (b) supplementary Annex material; and
- (c) associated Trustee correspondence concerning chronology, regulatory reliance, document custody, and framework sequencing matters.

C42.4

The correspondence does not identify:

- (a) any alteration to the EPA's previously communicated regulatory position;
- (b) any identified authorising instrument modifying or varying the requirements of NZS 6808:2010 or the endorsed Noise Compliance Test Plan; or
- (c) any further reconciled explanation concerning the matters recorded within this Annex.

C42.5

This clause records continuation of the EPA's regulatory position following consideration of the material provided by the Trustee.

C42.6

This clause does not determine:

- (a) the correctness of that position;
- (b) the legal effect of the correspondence; or
- (c) the regulatory significance of the matters recorded elsewhere within this Annex.